

26STCV14072 26STCV14072

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C09%2F09%2F2026

Source SHA-256: 049daf3634f8f9e67e3589fba505c657f6909bc9a80a9a5280e09af2cfddf507

Case Number: 26STCV14072 Hearing Date: September 9, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 9, 2026

Case Name: Franceschi, Jr. v. Wedge Office, TRS, LLC, et al.

Case No.: 26STCV14072

Matter: Motion for Judgment on the Pleadings

Moving Party: Defendants Wedge Office, TRS, LLC and Wedge Office, LLC

Responding Party: Plaintiff Ernest Franceschi, Jr.

Notice: OK

Ruling: The Motion for Judgment on the Pleadings is granted, without leave

to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On May 1, 2026, Plaintiff Ernest Franceschi, Jr., a pro per attorney litigant, filed the operative Complaint for (1) intentional interference with easement in gross, (2) intentional interference with contract, (3) assault and IIED, and (4) civil harassment restraining order and/or injunctive relief.

Plaintiff alleges that security personnel acting on behalf of property management and Allied Universal Security Services harassed and threatened him while he was accessing the LA Fitness facility at the Water's Edge commercial complex. The dispute arose after security guards confronted Plaintiff for feeding wild ducks near a decorative outdoor pond, threatened to call the police for trespassing, and blew away the duck food with a leaf blower.

Defendants Wedge Office, TRS, LLC and Wedge Office, LLC now assert a Motion for Judgment on the Pleadings as to the Complaint.

"A defendant may move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to state a cause of action against that defendant. A motion for judgment on the pleadings 'is equivalent to a demurrer' Leave to amend 'is properly denied if the facts and nature of plaintiffs' claims are clear and under the substantive law, no liability exists.' " (Templo v. State, (2018) 24 Cal.App.5th 730, 735.)

Defendants primarily argue that they cannot be liable for the actions of security personnel employed by Allied/GSG Protective Services.

The Complaint indicates that "Defendants WEDGE OFFICE, TRS, LLC and or WEDGE OFFICE, LLC . . . contracted with or otherwise retained GSG to provide security services at the WATER'S EDGE facility."

A hirer of an independent contractor is generally not vicariously liable for the torts of the contractor committed against third parties (Gipson v. Davis Realty Co. (1963) 215 Cal.App.2d 190, 202; Rest.2d Torts § 409). To hold the hiring property owner directly liable, the plaintiff must plead that the owner retained control over the operational details of the work or specifically commanded/authorized the tortious act (Rest.2d Agency § 212; C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 877).

Here, the Complaint fails to allege facts demonstrating that the Wedge Defendants exercised control over the detailed manner and means of the security guards' work. Furthermore, Plaintiff's theory of ratification fails as a matter of law because a principal cannot ratify the acts of an actor unless the actor purported to act on behalf of that principal (Emery v. Visa Internat. Service Assn. (2002) 95 Cal.App.4th 952, 961). Plaintiff expressly alleges that the individual security guards acted in the course and scope of their employment with Allied/GSG, and the cease-and-desist letter was addressed solely to Allied. Because no facts establish direct wrongful acts by the Wedge Defendants or a basis to impute the security guards' conduct to them, all causes of action against the Wedge Defendants fail on this threshold ground.

Additionally, the subject causes of action individually fail for the reasons indicated below.

Easement

Plaintiff alleges that his gym membership agreement with LA Fitness confers upon him a personal "easement in gross" over the common areas of the commercial property (Water's Edge), including the open areas surrounding the decorative pond. Plaintiff further alleges that feeding wildlife/ducks is an activity incident to this easement.

As a matter of law, a commercial gym membership or lease license does not create an easement interest in real property. A gym member possesses at most a revocable license to use the designated facilities, not a property interest in the landlord's

real estate. Furthermore, even if an easement for ingress/egress existed, feeding wildlife contrary to property rules is not within the scope of an easement.

The Motion to the first cause of action is granted.

Interference with Contract

To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage. (Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148.)

The Complaint fails to allege facts demonstrating that Defendants intended to disrupt Plaintiff's contract with LA Fitness, or that Plaintiff was prevented from using the LA Fitness gym facilities. Enforcement of general property rules on private commercial land does not constitute actionable contractual interference absent specific facts showing intentional disruption of the membership contract.

The Motion to the second cause of action is granted.

Assault

The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 1301.)

Plaintiff's mere allegation that Defendant Cruz approached him holding a broomstick "so as to suggest that he would strike Plaintiff" while concurrently threatening to report him for trespassing is insufficient. Pleading an actionable assault requires factual allegations of an overt physical gesture demonstrating an imminent threat—such as raising the weapon, brandishing it aggressively, or advancing menacingly toward the plaintiff—rather than passive possession of an object paired with verbal warnings regarding property rules. Because the Complaint alleges ambiguous conduct and verbal threats of calling the police rather than an overt act threatening immediate unlawful force, the pleading is legally insufficient.

The Motion is granted as to the assault claim.

IIED

The elements of the tort of IIED are: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . . Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903, internal quotations omitted.) Liability does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Molko v. Holy Spirit Assn. (1986) 46 Cal.3d 1092, 1122.)

Here, Plaintiff fails to allege "extreme and outrageous" conduct. Therefore, the Motion is granted as to the IIED claim.

Restraining Order & Injunctive Relief

Code of Civil Procedure § 527.6 is a specialized statutory procedure intended to protect individuals from harassment by another natural person. It is not a standalone cause of action to be asserted against a corporate entity or employer in a general civil complaint.

Insofar as injunctive relief is sought as a remedy, an injunction is a remedy, not an independent cause of action.

The Motion is granted as to the fourth cause of action.

In sum, the Motion for Judgment on the Pleadings is granted. The Court is inclined to deny leave to amend.

Moving party to give notice.